

**BEFORE THE
FEDERAL MARITIME COMMISSION**

**Docket No. 08-03
Docket No. 12-02**

MAHER TERMINALS, LLC

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

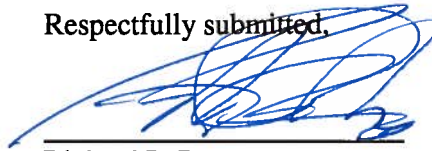
RESPONDENT

NOTICE OF SETTLEMENT

Pursuant to the Federal Maritime Commission's Order Granting Joint Motion for Approval of Settlement Agreement, Dismissal with Prejudice, and Stay, dated October 26, 2016 (the "Order"), Maher Terminals, LLC and the Port Authority of New York and New Jersey hereby provide notice that the Effective Date of the Settlement Agreement is November 16, 2016, the date that the transaction contemplated therein was completed. Per the Order, the above captioned actions were dismissed with prejudice effective immediately upon the Effective Date.

Dated: November 16, 2016

Respectfully submitted,



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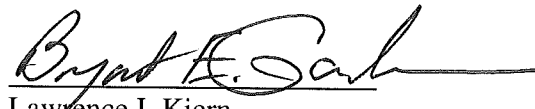
Attorneys for the Port Authority of
New York and New Jersey

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